



COLLABORATIVE PLANNING

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Heads of Terms

Land at Reeves Close, Porthleven, TR13 9PB

Financial Contribution:

A financial contribution will be made to mitigate the loss of public open space associated with the development at Reeves Close, Porthleven.

Contribution Amount:

Cornwall Council is currently reviewing its approach to s106 contributions. As the scheme predates the current standards, the Council is unable to provide a reliable estimate based on the original housing numbers. The Public Open Space Officer has therefore suggested using the published rate for a Type 1 (park/amenity) open space (£14.24 per m²), adjusted for 11 years of inflation and multiplied by the POS area.

Based on an area of 844 m², this results in a total contribution of £12,018.56, plus inflation, which is to be confirmed.

Purpose of Contribution:

The contribution is intended to provide suitable replacement open space or enhance existing open space within the local area, to compensate for the loss of the existing open space on site.

Compliance with Planning Policy:

The obligation will comply with the statutory tests set out in the National Planning Policy Framework (NPPF), namely:

- Necessary to make the development acceptable in planning terms;
- Directly related to the development;
- Fairly and reasonably related in scale and kind to the development.

Timing of Payment:

The financial contribution shall be paid upon implementation of the development, or in accordance with a timetable agreed with the Council.